

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
ANDRE D'AVILAR,

Plaintiff, **FIRST AMENDED
COMPLAINT**

-against-

THE CITY OF NEW YORK; COMMISSIONER RAYMOND W. KELLY; CHIEF ANTHONY J. IZZO; INSPECTOR PHILIP BANKS; CAPTAIN MICHAEL LIPETRI; SGT. JEROME WARDROPE, SHIELD # 2786; P.O. VLAD KOGAN, SHIELD # 5727; P.O. DAVID PROSCIA, SHIELD # 13245; P.O. JERONE BOONE, SHIELD # 27034; P.O. DONNA BUSACCO, SHIELD # 985; SGT. PATRICK MCCARTHY, SHIELD # 2724; P.O. ARMANDO ERAZO, SHIELD # 3673; P.O. SAMUEL FRANCE, SHIELD # 31189; P.O. JOSEPH RODRIGUEZ, SHIELD # 28899; P.O. DANIEL WINGATE, SHIELD # 5589; P.O. WILLIE LOMAX, SHIELD # 6698; P.O. JEFFREY STRUGGS, SHIELD # 22330; P.O. STEFAN MERCUS, SHIELD # 21250; P.O. SCOTT MCMASTER, SHIELD # 15295; SGT. IGNAZIO CONCA, SHIELD # 906; P.O. STEVEN NUSSENBLATT, SHIELD # 23343; P.O. KEITH CHATTERTON, SHIELD # 7323; P.O. PRZEMYSŁAW SZUMILO, SHIELD # 27089; P.O. CATHIEANN BROWNE, SHIELD # 4678; P.O. THOMAS MILLER, SHIELD # 31939; the individual defendants sued individually and in their official capacities,

06-cv-6541 (AKH) (MHD)

Jury Trial Demanded

Defendants.

-----X
PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. The claims arise from an incident, which occurred on or about June 10, 2006. During the incident the City of New York and members of the New York City Police Department

(“NYPD”) subjected plaintiff to, among other things, false arrest and imprisonment, excessive force, unlawful search and seizure, unconstitutional conditions of confinement, malicious prosecution, assault and battery, conversion of chattels, intentional and negligent infliction of emotional distress, retaliation for free speech, fabricated evidence, conspiracy, harassment, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney’s fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide claims arising under state law. A notice of claim was duly filed on the City of New York within 90 days of the incident at issue, more than 30 days have elapsed since such filing and the City has refused to settle plaintiff’s claims. Moreover, this action has been filed within one year and 90 days of the incidents that are the basis of this claim.

4. Venue is proper here pursuant to 28 U.S.C. § 1391 because some of the acts in question occurred in New York County, and the City of New York is subject to personal jurisdiction in the Southern District of New York.

PARTIES

5. Plaintiff Andre D'Avilar is a citizen of the state of Minnesota, county of Hennepin.

6. Defendant City of New York is a municipal corporation organized under the laws of the State of New York which violated plaintiff's rights as described herein.

7. Defendant Raymond W. Kelly is the Commissioner of the NYPD who violated plaintiff's rights as described herein.

8. Defendant Anthony J. Izzo is the Chief of the New York City Police Department Narcotics Division located in New York, New York, who violated plaintiff's rights as described herein.

9. Defendant Inspector Philip Banks is the commanding officer of the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

10. Captain Michael LiPetri is a captain with the NYPD employed at the BSND located in Brooklyn, New York who violated plaintiff's rights as described herein.

11. Sgt. Jerome Wardrope, Shield # 2786 is a Sergeant with the NYPD employed at the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

12. P.O. Vlad Kogan, Shield # 5727 is a Police Officer with the NYPD employed at the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

13. P.O. David Proscia, Shield # 13245 is a Police Officer with the NYPD employed at the 88th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

14. P.O. Jerone Boone, Shield # 27034 is a Police Officer with the NYPD employed with the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

15. P.O. Donna Busacco, Shield # 985 is a Police Officer with the NYPD employed with the 84th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

16. Sgt. Patrick McCarthy is a Sergeant with the NYPD employed at the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

17. P.O. Armando Erazo, Shield # 3673 is a Police Officer with the NYPD employed with the 83rd Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

18. P.O. Samuel France, Shield # 31189 is a Police Officer with the NYPD employed at the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

19. P.O. Joseph Rodriguez, Shield # 28899 is a Police Officer with the NYPD employed at the 83rd Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

20. P.O. Daniel Wingate, Shield # 5589 is a Police Officer with the NYPD employed at the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

21. P.O. Willie Lomax, Shield # 6698 is a Police Officer with the NYPD employed at the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

22. P.O. Jeffrey Struggs, Shield # 22330 is a Police Officer with the NYPD employed at the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

23. P.O. Stefan Mercus, Shield # 21250 is a Police Officer with the NYPD employed at the 83rd Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

24. P.O. Scott McMaster, Shield # 15295 is a Police Officer with the NYPD employed at the 83rd Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

25. Sgt. Ignazio Conca, Shield # 906 is a Police Officer with the NYPD employed at the 120th Precinct located in Staten Island, New York who violated plaintiff's rights as described herein.

26. P.O. Steven Nussenblatt, Shield # 23342 is a Police Officer with the NYPD employed at the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

27. P.O. Keith Chatterton, Shield # 7323 is a Police Officer with the NYPD employed at the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

28. P.O. Przemyslaw Szumilo, Shield # 27089 is a Police Officer with the NYPD employed at the 83rd Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

29. P.O. Cathieann Browne, Shield # 4678 is a Police Officer with the NYPD employed at the 79th Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

30. P.O. Thomas Miller, Shield # 31939 is a Police Officer with the NYPD employed at the 83rd Precinct located in Brooklyn, New York who violated plaintiff's rights as described herein.

31. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

32. The following is a summary set forth for the purpose of demonstrating, averring, and providing notice of plaintiff's claims against the defendants. Plaintiff has not set forth each and every fact concerning the incident(s) described below.

33. On June 10, 2006, at approximately 4:00 p.m. at the intersection of Nostrand Avenue and Macon Street in Brooklyn, New York, several members of the NYPD, including Captain Michael LiPetri, Sgt. Jerome Wardrope, P.O. Vlad Kogan, P.O. David Proscia, P.O. Jerone Boone, P.O. Donna Busacco, Sgt. Patrick McCarthy, P.O. Armando Erazo, P.O. Samuel France, P.O. Joseph Rodriguez, P.O. Daniel Wingate, P.O. Willie Lomax, P.O. Jeffrey Struggs, P.O. Stefan Mercus, P.O. Scott McMaster, Sgt. Ignazio Conca, P.O. Steven Nussenblatt, P.O. Ketih Chatterton, P.O. Przemyslaw Szumilo, P.O. Cathieann Brown, and P.O. Thomas Miller committed the following illegal acts against plaintiff.

34. At the intersection of Nostrand Avenue and Macon Street in Brooklyn, New York, several police officers, after having arrested a non-party suspect, drove their squad car through a red light, forcing a non-party civilian to drive his vehicle into the Nostrand Deli

and Grocery Store. This accident called the attention of the local residents and soon a crowd began to gather around the accident. See enclosed article from *Caribbean Life Newspaper* Brooklyn/Staten Island Edition, dated June 20, 2006 attached hereto as **Exhibit 1**.

35. On the afternoon of June 10, 2006, at approximately 4:00 p.m., plaintiff Andre D'Avilar was passing by Nostrand Avenue with his fiancé Nicholetta James, her son Matthew Andrews (age 13), and Andre D'Avilar, Jr. (age 9) when the family noticed the accident and the gathering crowd. Upon approaching the scene, the family was approached by several officers, including the defendant officers, who became aggressive at their presence and demanded that they leave the scene. The family obeyed the command, but became separated and plaintiff went to the other side of the street, while Ms. James and the two young boys went a different way.

36. Upon crossing the street, plaintiff witnessed a group of police officers, including the defendant officers assaulting a non-party civilian. At this point, plaintiff took out his mobile telephone to photograph the assault.

37. As soon as one of the defendant officers noticed plaintiff photographing the assault on the non-party civilian he grabbed plaintiff about the arm and forced him to the ground. At this time, plaintiff began to protest, but was stormed by several defendant officers, who, at times acting in concert and at times acting individually, maliciously, gratuitously, and unnecessarily began to assault him with kicks and punches about his body. Plaintiff instinctively covered his head to protect himself from the trauma. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

38. When plaintiff's mobile phone was taken from him, one of the defendants stomped on the phone with his boot, breaking it. In addition, the defendant police officers

subjected plaintiff to excessively tight handcuffs. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

39. When plaintiff complained about the defendants' conduct, in retaliation for plaintiff's free speech, the defendant police officers, without reasonable suspicion or probable cause, unlawfully arrested and searched plaintiff on the street. No narcotics, contraband, or weapons were recovered from plaintiff as a result of the search.

40. Thereafter, the defendant police officers brought plaintiff to the 79th Precinct in Brooklyn, New York in a squad car. While plaintiff was in the back of the squad car, plaintiff's son, Andre D'Avilar, Jr. witnessed plaintiff handcuffed in the car.

41. Defendant Captain Michael LiPetri was present during the above incidents, and supervised, and approved plaintiff's false arrest.

42. While at the 79th Precinct, the defendant police officers failed to provide medical treatment to plaintiff even though he had visible wounds that required attention. Plaintiff was then given a Desk Appearance Ticket, under Summons # 4283185796, and Docket # 2006SK089668.

43. In addition, while plaintiff was at the Precinct, defendants Inspector Philip Banks, Captain Michael LiPetri, Sgt. Jerome Wardrope, P.O. Vlad Kogan, P.O. David Proscia, P.O. Jerone Boone, P.O. Donna Busacco, Sgt. Patrick McCarthy, P.O. Armando Erazo, P.O. Samuel France, P.O. Joseph Rodriguez, P.O. Daniel Wingate, P.O. Willie Lomax, P.O. Jeffrey Struggs, P.O. Stefan Mercus, P.O. Scott McMaster, Sgt. Ignazio Conca, P.O. Steven Nussenblatt, P.O. Ketih Chatterton, P.O. Przemyslaw Szumilo, P.O. Cathieann Brown, and P.O. Thomas Miller, pursuant to a conspiracy, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed a crime, and based on the defendants' false

allegations, the District Attorney's Office prosecuted plaintiff until the case was dismissed on August 7, 2006 in Part SAP-D.

44. The individual defendants acted in concert committing these illegal acts against plaintiff.

45. Plaintiff did not resist arrest at any time during the above incidents.

46. Plaintiff did not engage in suspicious, unlawful or criminal activity prior to or during the above incidents.

47. The individual defendants did not observe plaintiff engaged in suspicious, unlawful, or criminal conduct at any time prior to or during the above incidents.

48. At no time prior to or during the above incidents were the individual defendants provided with information or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had engaged in suspicious, unlawful or criminal conduct.

49. The aforesaid events were not an isolated incident. Defendants Commissioner Raymond W. Kelly, Chief Anthony J. Izzo, Inspector Philip Banks, and Captain Michael LiPetri have been aware (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of the NYPD's officers are insufficiently trained on the proper way to use force, search arrestees, and treat innocent and/or uninvolved individuals who are found at an incident scene and/or investigation location. Commissioner Raymond W. Kelly, Chief Anthony J. Izzo, Inspector Philip Banks, and Captain Michael LiPetri are further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, Commissioner Raymond W. Kelly, Chief Anthony J. Izzo, Inspector Philip Banks, and

Captain Michael LiPetri have failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.

50. Moreover, Commissioner Raymond W. Kelly, Chief Anthony J. Izzo, Inspector Philip Banks, and Captain Michael LiPetri were aware prior to the incident that the defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, Commissioner Raymond W. Kelly, Chief Anthony J. Izzo, Inspector Philip Banks, and Captain Michael LiPetri have retained these officers, and failed to adequately train and supervise them.

51. As a result of defendants' actions plaintiff experienced personal and physical injuries (including bruises, contusions, lacerations, soreness, and swelling), pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

**FEDERAL AND STATE CLAIMS AGAINST
THE INDIVIDUAL DEFENDANTS**

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. The conduct of defendant officers, as described herein, amounted to false arrest, excessive force, unlawful search and seizure, malicious prosecution, assault and battery, conversion of chattels, intentional and negligent infliction of emotional distress, retaliation for free speech, fabricated evidence, conspiracy, harassment, unconstitutional conditions of confinement, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom.

54. The conduct of the defendant officers, as described herein, violated plaintiff's rights under 42 U.S.C. §§ 1983 and 1985(3), the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and New York State law, by committing false arrest, excessive force, unlawful search and seizure, malicious prosecution, assault and battery, conversion of chattels, intentional and negligent infliction of emotional distress, retaliation for free speech, fabricated evidence, conspiracy, harassment, unconstitutional conditions of confinement, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom.

55. Defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights secured by 42 U.S.C. §§ 1983 and 1985(3), the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and New York State law.

56. As a direct and proximate result of the misconduct and abuse detailed above, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

57. The plaintiff is also entitled to receive punitive damages because defendants' actions were motivated by extreme recklessness and indifference to the plaintiff's rights.

FEDERAL AND STATE CLAIMS AGAINST
DEFENDANTS KELLY AND IZZO

58. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

59. Defendants Raymond W. Kelly and Chief Anthony J. Izzo are liable, in their official capacity, to plaintiff because: (1) they created and allowed to continue a policy or custom under which unconstitutional practices occurred, (2) they were grossly negligent in supervising subordinates who committed the wrongful acts, and (3) they exhibited deliberate indifference to the rights of others by failing to act on information indicating that unconstitutional acts were occurring.

60. Upon information and belief, defendants Kelly and Izzo were aware from notices of claim, lawsuits, complaints, and the NYPD's own observations that the officers sued in the present case were unfit to be police officers, and that it was highly likely that they would commit the acts alleged in the present case.

61. Nevertheless, defendants Kelly and Izzo exercised deliberate indifference by failing to take remedial action.

62. The aforesaid conduct by defendants Kelly and Izzo violated plaintiff's rights under 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and New York State law, by failing to re-train the defendant subordinate officers, failing to adequately discipline the defendant subordinate officers, failing to adequately investigate prior complaints against the defendant subordinate officers either at the facilities where the incidents occurred, or at their Headquarters located in New York, New York, and creating a culture where officers are encouraged to harass and assault those who question their authority, and acting in manner which amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

63. As a direct and proximate result of the misconduct and abuse detailed above, plaintiff experienced personal and physical injuries, pain and suffering, fear, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

64. The aforesaid conduct of defendants Kelly and Izzo amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

**FEDERAL AND STATE CLAIMS AGAINST
THE CITY OF NEW YORK**

65. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

66. The City of New York directly caused the constitutional violations suffered by plaintiff.

67. Upon information and belief, the City of New York was aware from notices of claim, lawsuits, complaints, and from NYPD's own observations, that the officers involved in the present case were unfit to be police officers, and that it was highly likely that they would commit the acts alleged in the present case.

68. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City of New York failed to properly train, re-train, supervise, discipline, monitor, and improperly utilized and retained these officers. Moreover, the City of New York failed to adequately investigate prior complaints against the officers and created a culture where officers can harass and assault citizens without consequence. Indeed, when citizens file complaints against officers, the City has a practice of failing to substantiate or address the complaint, even under circumstances where the complaint is corroborated and credible, and the account given by the officer is unworthy of belief.

69. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

70. Moreover, the aforesaid conduct by the City of New York amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

71. Finally, under state law, the City of New York is responsible for its employees' actions under the doctrine of respondeat superior.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
July 27, 2006

MICHAEL O. HUESTON, ESQ. (MH 0931)
Attorney for Plaintiff
350 Fifth Avenue, Suite 4810
New York, New York 10118
(212) 643-2900
mhueston@nyc.rr.com
By:

MICHAEL KUSHNER (MK-6117)
Attorney for Plaintiff
350 Fifth Avenue, Suite 4810
New York, New York 10118

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

----- x
ANDRE D' AVILAR,

Plaintiff,

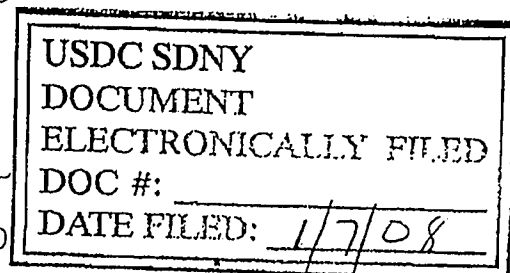
-against-

**STIPULATION AND ORDER
OF SETTLEMENT AND
DISCONTINUANCE**

06 CV 6541 (AKH)(MHD)

CITY OF NEW YORK, COMMISSIONER RAYMOND
W. KELLY, CHIEF ANTHONY J. IZZO, INSPECTOR
PHILIP BANKS, CAPTAIN MICHAEL LIPETRI, SGT.
JEROME WARDROPE, SHIELD 2786, PO VLAD
KOGAN, SHIELD 5727, PO DAVID PROSCIA, SHIELD
133245, PO JERONE BOONE, SHIELD 27034, PO
DONNA BUSACCO, SHIELD 985, SGT. PATRICK
MCCARTHY, SHIELD 2724, PO ARMANDO ERAZO,
SHIELD 3673, PO SAMUEL FRANCE, SHIELD 31189,
PO JOSEPH RODRIGUEZ, SHIELD 28899, PO DANIEL
WINGATE, SHIELD 5589, PO WILLIE LOMAX,
SHIELD 6698, PO JEFFREY STRUGGS, SHIELD 22330
PO STEFAN MERCUS, SHIELD 21259, PO SCOTT
MCMASTER, SHIELD 15295, SGT. IGNAZIO CONCA,
SHIELD 906, PO STEVEN NUSSENBLATT, SHIELD
23343, PO KEITH CHATTERTON, SHIELD 7323, PO
PRZEMYSŁAW SZUMILO, SHIELD 27089, PO
CATHELEANN BROWNE, SHIELD 4678, PO THOMAS
MILLER, SHIELD 31939, the individual defendants sued
individually and in their official capacities,

Defendants.
----- x



WHEREAS, plaintiff commenced this action by filing an amended complaint on
or about July 31, 2007, alleging violations of his civil rights pursuant to 42 USC § 1983 and state
law claims; and

WHEREAS, defendants have denied any and all liability arising out of plaintiff's
allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation,
without further proceedings and without admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed, with prejudice, and without costs, expenses, or fees in excess of the amount specified in paragraph "2" below.

2. The City of New York hereby agrees to pay plaintiff the sum as set forth herein as follows in full satisfaction of all claims, including claims for costs, expenses, and attorney fees: Andre D'Avilar the sum of Fifty-Three Thousand Dollars (\$53,000). In consideration for the payment of this sum, plaintiff agrees to the dismissal of all the claims against the defendants, City of New York, Kelly, Izzo, Banks, LiPetri, Wardrope, Kogan, Proscia, Boone, Busacco, McCarthy, Erazo, France, Rodriguez, Wingate, Lomax, Struggs, Mercus, McMaster, Conca, Nussenblatt, Chatterton, Szumilo, Browne, and Miller, with prejudice, and to release the defendants and any present or former employees or agents of the City of New York, from any and all liability, claims, or rights of action under state or federal law which were or could have been alleged in this action, including claims for costs, expenses and attorney fees.

3. Plaintiff shall execute and deliver to defendants' attorneys all documents necessary to effect this settlement, including, without limitation, a General Release based on the terms of paragraph 2 above and an Affidavit of No Liens.

4. Nothing contained herein shall be deemed to be an admission by the defendants that they have in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules, regulations or bylaws of any department or subdivision of the City of New York. This stipulation and

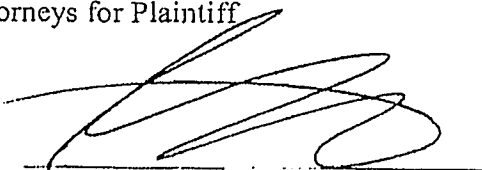
settlement shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York.

6. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

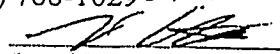
Dated: New York, New York
12/17, 2007

Michael Hueston, Esq.
350 Fifth Avenue, Suite 4810
New York, New York 10118
Attorneys for Plaintiff

By: 

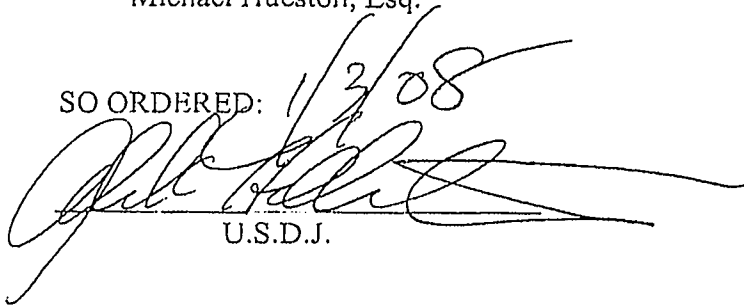
Michael Hueston, Esq.

MICHAEL A. CARDOZO
Corporation Counsel of the
City of New York
Attorney for Defendants
100 Church Street, Room 3-180/43
New York, New York 10007
(212) 788-4029 0771

By: 

Jennifer L. Rubin, Esq. Michael Chestnut
Assistant Corporation Counsel

SO ORDERED: 1/3/08


U.S.D.J.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND: PART 15**

THE PEOPLE OF THE STATE OF NEW YORK

-against-

CLINTON JAMES,

Defendant.

**NOTICE OF MOTION
INDICTMENT # 81-2013**

SEYMOUR W. JAMES. JR., ESQ.

Attorney for Defendant

The Legal Aid Society

Criminal Defense Practice

60 Bay Street

Staten Island, New York 10301

MICHAEL ROONEY

Of Counsel

(347) 390-1831

Fax: (646) 449-6813
